

Court No. - 4

Case :- WRIT - C No. - 9100 of 2018

Petitioner :- Lalta Prasad

Respondent :- State Of U.P. And 03 Others

Counsel for Petitioner :- Dr. Akhilesh Kumar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Bala Krishna Narayana,J.

Hon'ble Irshad Ali,J.

Heard Dr. Akhilesh Kumar, learned counsel for the petitioner, learned Standing Counsel for the respondent nos. 1, 2 and 3 and Sri Baleshwar Chaturvedi, learned counsel for the respondent no. 4.

This writ petition has been filed by the petitioner with a prayer to issue a writ, order or direction in the nature of certiorari quashing the demand notice dated 18.02.2013 calling upon the petitioner to deposit a sum of Rs. 1,90,266/- towards his electricity dues.

Sri Baleshwar Chaturvedi, learned counsel for the respondent no. 4 submitted that after the complaint filed by the petitioner before the Electricity Consumer Grievances Redressal Forum, Agra Division, Agra challenging the correctness of his electricity bill, was dismissed by the forum by order dated 27.11.2017 (Annexure No. 5) holding the petitioner liable to pay Rs. 1,90,288/- towards his electricity dues, the amount which is now sought to be recovered from the petitioner is the same amount which was the subject matter of the same disputed bill, correctness whereof was challenged by the petitioner before the Electricity Consumer Grievances Redressal Forum, Agra Division, Agra. He further submitted that against the impugned recovery certificate, the petitioner has statutory remedy available under clause 7.10 of U.P. Electricity Supply Code, 2005 by moving a representation before the Ombudsman.

In view of the above, the writ petition is dismissed on the ground of alternative remedy.

Order Date :- 12.3.2018

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